

12. 9:00 AM CASE NUMBER: C26-00308
CASE NAME: SYIMYK KALYKOV VS. CHRIS BRECHEISEN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF CONCORD

TENTATIVE RULING:

This matter is **continued to November 2, 2026**.

Plaintiff's declaration in opposition to the demurrer is missing the attached exhibits. Further, Plaintiff has provided new facts in its opposition and the parties are ordered to meet and confer regarding whether Plaintiff should amend his complaint now and then the Defendants be permitted to demurrer to the amended complaint.

The parties shall engage in a meet and confer by Zoom or telephone no later than October 12, 2026. Defendants Contra Costa Transportation Authority and the City of Concord will file and serve a declaration by October 19, 2026. The declaration will confirm whether the meet and confer occurred and identify any items the parties were able to reach an agreement on, including whether they can stipulate to allow Plaintiff leave to amend the complaint. This declaration may also address whether Plaintiff gave Defendants an extension of time to answer as opposed to file a responsive pleading. Plaintiff may file and serve a declaration addressing the issue by October 26, 2026, and may include the exhibits referred in the declaration filed with the opposition. No further briefing is permitted.

13. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
***HEARING ON MOTION IN RE: STRIKE THE CROSS-COMPLAINT OF TANK-TEK ENVIRONMENTAL CORPORATION**
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a motion by cross-defendant Petro-Analytical, Inc. to strike certain relief sought in the cross-complaint of Tank-Tek Environmental Corporation. For the reasons set forth, the motion is **GRANTED, WITH LEAVE TO AMEND**.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro \$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶